

25STCV20978 25STCV20978

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Case Number: 25STCV20978 Hearing Date: August 25, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

MIGUEL A. ROBINSON, an individual

and as successor-in-interest on behalf of

BEVERLY I. CATUY

vs.

VIEW PARK

CONVALESCENT HOSPITAL, LLC

Defendants

Case

No.: 25STCV20978

Hearing Date: August 25, 2026

HECTOR DOMALLY

Nominal Defendant.

Defendant's motion to compel arbitration is GRANTED as to the wrongful death claim. This action is STAYED pending completion of arbitration on the wrongful death claim.

On 7/16/2025,

Plaintiff Miguel A. Robinson, an individual and as successor-in-interest on behalf of Beverly I. Catuy, filed suit against View Park Convalescent Hospital, LLC (Defendant) and Hector Domally (Nominal Defendant), alleging: (1) statutory elder abuse/neglect; (2) violation of Patient's Bill of Rights and Health and Safety Code section 1430(b); (3) wrongful death; and (4) negligence.

On 4/23/2026, Defendant

View Park Convalescent Hospital, LLC (Defendant) moved to compel arbitration and stay proceedings.

Legal
Standard

Where the Court has determined that an agreement to arbitrate a controversy exists, the Court shall order the petitioner and the respondent to arbitrate the controversy ...unless it determines that... grounds exist for rescission of the agreement." (Code Civ. Proc., § 1281.2.) Among the grounds which can support rescission are fraud, duress, and unconscionability. (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 239.) The Court may also decline to compel arbitration wherein there is possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2 (c).)

Discussion

I.
Defendants'
Burden

The party moving to compel arbitration "bears the burden of proving [the] existence [of an arbitration agreement] by a preponderance of the evidence." (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party also bears the burden of demonstrating that the claims fall within the scope of the arbitration

agreement. (Omar v. Ralphs Grocery Co. (2004)
118 Cal.App.4th 955, 961.)

Here, Defendant submitted
evidence that holder of Decedent Beverly Catuy's
General Power of Attorney, Hector Domally, executed two Arbitration Agreements
on behalf of Decedent. (See Exhibits A and B to the Ramirez Decl.)

Defendant
submitted evidence that on 1/13/2015 – more than one year prior to her
admission to View Park – Decedent executed a “General Power of Attorney” which
appointed, her son, Hector Domally as Decedent's Attorney-in-Fact and
authorized him, “unlimited power and authority to act in,” “(a) real estate
transactions; (b) goods and services transactions; (c) bond, share and
commodity transactions; (d) banking transactions; (e) business operating
transactions; (f) insurance transactions; (g) estate transactions; (h) claims
and litigation; (i) personal relationship and affairs; (j) benefits from
military service; (k) records, reports and statements; (l) retirement benefit
transactions; (m) making gifts to my spouse, children and more remote
descendants, and parents; (n) tax matters; (o) all other matters; and (p) full
and unqualified authority to my attorney-in-fact to delegate or all of the
foregoing powers to any person or persons whom my attorney-in-fact shall
select.” (See Executed General Power of Attorney of Beverly Catuy,
attached as Exhibit B to the Alvarado Decl.)

Unlike the
holder of a Power of Attorney for Healthcare, the holder of an individual's
General Power of Attorney is authorized under current California law to sign an
Arbitration Agreement with a skilled nursing facility on behalf of that
individual. (See Harrod v. Country Oaks Partners, LLC (2024) 15 Cal.5th
939.)

In
opposition, Plaintiff contends that he is not bound by it because he did not
sign the Agreement, as it was signed by Hector Domaly
in his capacity as Power of Attorney for Mrs. Catuy, and Mr. Domaly did not
have any representative capacity for Plaintiff Robinson.

However,
this ignores the fact that Hector Domaly's signature was on behalf of Decedent

and that Plaintiff is therefore bound to proceed with Decedent's survivor claims in arbitration. The signed Agreement provided that the arbitration provisions were binding on all parties to the Agreements, including "Resident's representatives, executors, family members, and heirs." (See, Article 4, the Arbitration Agreements, attached as Exhibit C and D to Alvarado Decl.)

Moreover,

the Court finds that the cause of action for wrongful death does fall within the scope of the arbitration agreement. The Court disagrees with Plaintiff's contention otherwise. In *Ruiz v. Podolsky* (2010) 50 Cal.4th 83, the California Supreme Court established that an heir's claim for wrongful death under these circumstances is subject to an arbitration agreement between the patient or the patient's legal representative on the one side and health care provider on the other.

The

California Supreme Court has also more recently weighed in on how to analyze the application of Arbitration Agreements to wrongful death claims. In *Holland v. Silverscreen Healthcare, Inc.*, (Cal. Aug. 14, 2025) 2025 WL 2349863, plaintiffs filed suit against a skilled nursing facility and stated causes of action for dependent adult abuse under the Elder Abuse and Dependent Adult Civil Protection Act (Elder Abuse Act), negligence, violation of resident rights, and wrongful death. The trial court granted the facility's motion to compel arbitration as to the three survivor claims but denied the motion as to the heirs' individual claim for wrongful death. The Court of Appeal reversed the trial court's decision regarding the wrongful death claim and ruled that it should also be ordered to arbitration.

Upon review,

the California Supreme Court held that the Court of Appeals had extended *Ruiz* past statutory bounds and reversed the Court of Appeals decision. In its discussion, the Supreme Court focused on confining the ruling in *Ruiz* to determine whether a cause of action for wrongful death was based on medical malpractice/professional negligent as defined in Code of Civil Procedure section 1295, or as custodial neglect of "a resident's basic welfare and safety needs." (See *Avila v. Southern California Specialty Care, Inc.*, 20 Cal.App.5th 835, 843-843 [A hospital's failure to provide basic care and services resulted in a dislodged feeding tube that caused Decedent's death]; *Hearden v. Windsor Redding Care Center, LLC* (2024) 103 Cal.App.5th 1010, 1019 [A wrongful death claim incorporating allegations such as failure to adequately staff the facility,

provide basic custodial care to residents, monitor residents, and provide sufficient equipment and training to prevent the spread of COVID-19 in the facility was custodial neglect, not medical malpractice.)

Unlike the complaints in Avila, Hearden, and Holland, Plaintiff's Complaint here makes specific allegations "connecting the factual predicate of the claim to the claim of injury." (Holland, supra.) The gravamen of Plaintiff's allegations against View Park is rooted in the undertaking or performance of medical services that View Park provided (or allegedly did not provide) to Decedent during her eight-year residency at View Park. For example, in paragraph 11 of Plaintiff's Complaint, Plaintiff alleges that Decedent "did not receive all of the medical care, services, and medication required by doctor's orders." (See Complaint ¶ 11.) Plaintiff further alleged that due to View Park's actions, Decedent "developed multiple conditions and injuries, including, but not limited to bacterial pneumonia; malnutrition; worsening and severe sacrococcyx ulcers which became infected, leading to sepsis and osteomyelitis." (See, Complaint ¶ 12.)

Similarly, in Paragraph 16 of the Complaint, Plaintiff alleges that View Park "allowed [Decedent] to develop repeated and ultimately deadly pneumonia; malnutrition; sepsis; osteomyelitis; and other life-threatening conditions that led directly to her death. (See, Complaint ¶ 16.)

The specific allegations of Decedent's heir regarding View Park's undertaking and performance of medical services for the eight years Decedent resided at View Park differ from the claims of custodial neglect described in Avila, Hearden, and Holland. Therefore, the Court finds that wrongful death by negligence claim of Decedent's heir(s) should be sent to arbitration pursuant to CCP section 1295 and Ruiz.

Given that Defendant has established by a preponderance of the evidence that an arbitration agreement exists, and that Plaintiff's claims are covered by that agreement, the burden shifts to the Plaintiff to establish that the arbitration clause should not be enforced. (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236. (Pinnacle).)

II.

Plaintiff's Burden

Plaintiff did not raise any grounds for unenforceability outside of those discussed above, and thus has not met his burden to establish that the arbitration clause should not be enforced. (Pinnacle, supra, 55 Cal.4th at p. 236.)

Accordingly, Defendant's motion to compel arbitration is granted as to the wrongful death claim. This action is stayed pending completion of arbitration on the wrongful death claim.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.